

Punjab And Sind Bank vs Pawan Kumar on 19 February, 2025

IN THE COURT OF CIVIL JUDGE-02, SHAHDARA DISTRICT AT
KARKARDOOMA COURTS, DELHI

Presided By : Varun Chandra, DJS

Civil Suit No: 1244/22

Punjab & Sind Bank
Through AR/Attorney
Sh. Nafe Singh
Having Head Office at:
21, Rajendra Place, Delhi-110008

... Counter claimant

Versus

Sh. Pawan Kumar
S/o Late Jai Singh
R/o D-1/44, Gali no. 1,
Loni Road, Ashok Nagar,
Delhi-110093

... Defendant in the counter claim

SUIT FOR RECOVERY OF Rs.1,07,000/- (ONE LAKH
SEVEN THOUSAND ONLY) ALONG WITH PENDENTE-
LITE AND FUTURE INTEREST @ 18% PER ANNUM

DATE OF INSTITUTION : 13.10.2022
DATE OF FINAL ARGUMENTS : 23.10.2024
DATE OF DECISION : 19.02.2025

JUDGMENT

1. The counter claimant has filed this suit against the defendant in the counter claim praying for (a) recovery of Rs.1,07,000/- (One Lakh Seven Thousand Only) along with pendente-lite and future interest @ 18% per annum and cost of this suit.

2. The case of the counter claimant bank as discernible from Civil Suit No.1244/22 Digitally signed by Punjab And Sind Bank Vs. Pawan Kumar VARUN Page No.1 of 6 VARUN CHANDRA CHANDRA Date:

2025.02.19 16:02:15 +0530 the plaintiff of this suit and the documents filed along with the plaintiff of this suit is that the claimant/ plaintiff is a public sector bank owned by the Government of India having its Head Office at 21, Rajendra Place, New Delhi-110008 has filed this counter claim against the respondent through its Attorney- Shri Nafe Singh vide Attorney dated 14.11.2017.

3. That the respondent has been maintaining his Saving Bank Account vide No, 09011000047382 with the Claimant/Plaintiff at its Anand Vihar Branch, Delhi- 110092.

4. That the present case is Counter Claim filed against the Respondent/Defendant., That the Defendant had filed a civil suit vide no. CS/235/2020 against the claimant/plaintiff for recovery of money of Rs.2,29,000/-.

5. That the defendant/respondent on 24.10.2018 deposited a cheque bearing no, 125373 dated 15.10,2018 of an amount of Rs.3,00,000/- drawn on Central Bank of India for encashment in his said saving bank account being maintained with Punjab & Sind Bank, However, the said cheque was deposited/ presented in the Plaintiff's Branch at New Modern Shahdara, Jagat Puri, Delhi-110032.

6. That when the said cheque was sent for clearance, the same was returned unpaid by the Clearing House of the Central Bank of India due to reason "Funds Insufficient". However, due to some error, inadvertently, an amount of Rs.3,00,000/- got credited in the account of the Defendant. It is submitted that said error occurred because the other Civil Suit No.1244/22 Digitally signed by Punjab And Sind Bank Vs. Pawan Kumar VARUN Page No.2 of 6 VARUN CHANDRA CHANDRA Date:

2025.02.19 16:02:22 +0530 subsequent cheques, which were in queue for clearance, were supposed to be encashed however, instead of other cheque clearance, an amount of Rs.3,00,000/- got transferred to the Defendant's account despite being the fact that the said cheque of the Defendant was dishonored.

7. That immediately when this incident came into the knowledge of the Plaintiffs officials, the Bank, as per the banking procedure, tried to revert back Rs.3,00,000/-, however, till then an amount of Rs.1,07,000/- had already been withdrawn by the Defendant. That the Bank was only able to revert an amount of Rs.1,93,000/- from the said bank account of the Defendant, That all these facts were duly communicated to the Defendant over telephone, and he was also requested to pay back Rs.1,07,000/- as his cheque has already been bounced.

8. That despite repeated requests to return/pay back the amount of Rs.1,07,000/- the Defendant did not pay any heed but sent a Legal Demand Notice dated 03.11.2018 and 04.12.2018 for recovery of Rs.1,93,000/-. After this, the Respondent had filed a Civil Suit vide no, 235/2020 against the Claimant/Plaintiff for recovery of Rs.2,29,000/-. It is pertinent to mention that Ld. Predecessor Court was pleased to dismiss in default the said Civil Suit (CS/235/2020) vide order dated 24.07.2024.

9. That the respondent, who is bound to refund the amount of Rs.1,07,000/- as stated above to the claimant bank, who is custodian of the public funds, in place of returning of said amount filed a false suit Civil Suit No.1244/22 Digitally signed by Punjab And Sind Bank Vs. Pawan Kumar VARUN VARUN CHANDRA Page No.3 of 6 CHANDRA Date:

2025.02.19 16:02:29 +0530 for recovery of money of Rs.2,29,000/- for which he is not entitled. Hence, the claimant has forced to prefer this counter claim against the respondent.

10. Upon service of summons for settlement of issues of this suit, the defendant in the counter claim did not furnish written statement despite multiple opportunities being provided to him, whereby, the right to file written statement was closed and the defence was struck off vide order dated 03.10.2023.

11. During the trial of this suit, one witness viz. PW1, AR of the counter claimant bank, Sh. Nafe Singh, Chief Manager, was examined in support of the case of the counter claimant and none was examined in support of the case of the defendant in the counter claim.

12. In order to adjudicate upon this suit, I had heard Sh. Gurpreet Singh Gulati, Ld. Advocate for the counter claimant on 23.10.2024. Despite opportunity, none had appeared on behalf of the defendant in the counter claim to address final arguments.

13. In order to prove his case qua this issue, the counter claimant has examined PW1, AR of the counter claimant bank, Sh. Nafe Singh, Chief Manager of the counter claimant bank. During examination in chief, PW1, AR of the counter claimant bank, Sh. Nafe Singh, Chief Manager of the counter claimant bank has tendered in evidence, copy of Attorney, Ex.PW1/A(OSR); Speed Post receipts, Ex.PW1/B(Colly); attested copy of the bank statement of the defendant's bank, Ex.PW1/C; postal receipt, Ex.PW1/D; copy of Civil Suit No.1244/22 Digitally Punjab And Sind Bank Vs. Pawan Kumar signed by VARUN Page No.4 of 6 VARUN CHANDRA CHANDRA Date:

2025.02.19 16:02:37 +0530 cheque, Mark A; copy of returning memo, Mark B; copy of envelop, Mark C and copy of reply-cum-demand notice dated 13.12.2018, Mark D.

14. Since the statutory period of filing of the written statement had expired in the counter claim. The right of of the defendant in the counter claim to file written statement was closed vide order of this court dated 03.10.2023. Despite repeated opportunities, none had appeared on behalf of the defendant in the counter claim, accordingly, the opportunity of the defendant in the counter claim to cross-examine the counter claimant was closed vide order dated 24.07.2024.

15. Adverting to the merits of the claim of the counter claimant, the counter claimant is being relying on the bank statement of the defendant's bank, to prove his claim of non-payment of Rs.1,07,000/- by the defendant which were duly withdrawn by them. The said document has remained unrebutted during the trial by the defendant in the counter claimant.

16. In my view, the unchallenged oral testimony of PW-1, AR of the plaintiff, Sh. Nafe Singh, Chief Manager of the counter claimant bank supported by the aforesaid documents establishes that the defendants are liable to pay Rs.1,07,000/- along with interest to the plaintiff.

17. With respect to quantum of interest, I find that in the prayer clause, the counter claimant bank has sought pendente-lite and future interest at the rate of 18% per annum. In my view, the claim of the Civil Suit No.1244/22 Digitally signed by Punjab And Sind Bank Vs. Pawan Kumar VARUN VARUN CHANDRA Page No.5 of 6 CHANDRA Date:

2025.02.19 16:02:44 +0530 plaintiff bank qua the pendente-lite and future interest is excessive and in the present case, the ends of justice would be met, if the counter claimant bank is granted pendente-lite interest at the rate of 12% per annum and future interest at the rate of 9% per annum.

RELIEF

18. Thus, as a net result of the aforesaid discussion, the present suit is decreed in favour of the counter claimant bank and against the defendant in the counter claimant for a sum of Rs.1,07,000/- (One Lakh Seven Thousand Only) alongwith pendente-lite interest at the rate of 12% per annum and future interest at the rate of 9% per annum.

19. Upon preparation of the decree sheet by the Reader, the file shall be consigned to the record room.

Note : This judgment contains 6 pages and all the pages have been Digitally checked and signed by me. signed by VARUN VARUN CHANDRA CHANDRA Date:

2025.02.19 16:02:51 +0530 Pronounced in open court (Varun Chandra) today on 19.02.2025 CJ-02/Shahdara District Karkardooma Courts/Delhi Punjab And Sind Bank Vs. Pawan Kumar